

ASSET PURCHASE AGREEMENT

This Asset Purchase Agreement (as amended, modified or supplemented from time to time, this “Agreement”) is made and entered into as of March 1, 2026, by and between YBK Coit, a New Jersey limited liability company with its registered office at 120 Coit Street, Irvington, NJ 07111 (the “Buyer”), and Arnold Kolax Furniture, Inc., a New Jersey limited liability company with its principal place of business at 120 Coit Street, Irvington, NJ 07111 (the “Seller” and collectively with Buyer, the “Parties”).

RECITALS

WHEREAS, Arnold Kolax Furniture, Inc. (“AKF”) is in the business of manufacturing custom made furniture (the “Business”);

WHEREAS, AKF leases at 120 Coit Street, Irvington, NJ 07111 from YB Coit, LLC pursuant to a lease dated December 12, 2024 (the “Lease”);

WHEREAS, YB Coit, LLC commenced an action on the Lease to evict AFK in the Superior Court of New Jersey for allegedly past due rent (the “Eviction Action”) and the Eviction Action is pending under docket no. ESX-LT-019465-25;

WHEREAS, to resolve the Eviction Action and rent due, YB Coit, LLC has offered to purchase the assets of AKF, through YBK Coit LLC a new entity formed by YB Coit LLC;

WHEREAS, the Buyer desires to purchase from the Seller, and the Seller desires to sell to the Buyer, certain of the Seller’s assets related to the Business, and the Buyer desires to assume from the Seller certain specified liabilities, in each case pursuant to the terms and subject to the conditions set forth herein;

WHEREAS, subject to the terms and conditions contained herein, the Buyer shall purchase and acquire from the Seller, the Purchased Assets (defined *infra*), and the Buyer shall assume from the Seller the Assumed Liabilities (defined *infra*), all as more specifically provided herein (the “Transactions”).

NOW, THEREFORE, in consideration of the premises and of the mutual covenants and agreements contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

ARTICLE 1 PURCHASE AND SALE OF ASSETS

1.1 Purchase and Sale of Assets. On the terms and subject to the satisfaction of the conditions contained in this Agreement, at the Closing, the Seller shall sell, assign, convey, transfer and

deliver to the Buyer, and the Buyer shall purchase and acquire from the Seller, all of the Seller's right, title and interest, free and clear of all liabilities and encumbrances (other than the Assumed Liabilities), in and to all of the properties, rights, interests and other tangible and intangible assets of the Seller to the extent related to the Business (collectively, the "Purchased Assets"); *provided, however*, that notwithstanding anything to the contrary herein, the Purchased Assets shall not include any Excluded Assets. Without limiting the generality of the foregoing, the Purchased Assets shall include all of the Seller's right, title and interest in and to the following (except to the extent listed as, or otherwise constituting, an Excluded Asset):

(a) any and all accounts receivable, notes receivable, trade receivables and other amounts receivable generated by the Business or owed to the Seller (whether current or non-current), together with all security or collateral therefor and any interest or unpaid financing charges accrued thereon, including all causes of action pertaining to the collection of amounts payable, or that may become payable, to the Seller with respect to products sold or services performed on or prior to the Closing Date;

(b) all royalties, advances, prepaid assets, customer deposits, security and other deposits, prepayments and other current assets relating to the Business, and any other prepaid and deferred items relating to the Business or the Purchased Assets (including all prepaid rentals and unbilled charges, fees, deposits, and prepaid balances);

(c) cash and cash equivalents in excess of \$5,000.00;

(d) all right, title and interest of Seller in the Lease;

(e) all inventory, materials and work in progress;

(f) all machinery and equipment set forth on **Schedule 1** annexed hereto and made a part hereof;

(g) Arnold Kolax Furniture tradename;

(h) all items of machinery, equipment, supplies, furniture, fixtures, leasehold improvements and other tangible personal property and fixed assets owned by the Seller as of the Closing, primarily related to the Business and reasonably required for the operation of the Business in the U.S. in substantially the same manner operated prior to the Closing;

(i) all goodwill associated with, or relating to, the Business or the Purchased Assets;

(j) any credits, allowances, rebates (including any vendor or supplier rebates), or rights of setoff (other than against the Seller) arising out of or relating to any of the Purchased Assets as of the Closing; and

(k) all claims and causes of action of the Seller against Persons other than the Seller (regardless of whether or not such claims and causes of action have been asserted by the Seller) and all rights of indemnity, warranty rights, rights of contribution, rights to refunds, rights of reimbursement and other rights of recovery, including rights to insurance

proceeds, possessed by the Seller (regardless of whether such rights are currently exercisable) to the extent related to the Purchased Assets and the Business, in each case excluding (i) any rights, claims or causes of action to the extent relating to any Excluded Assets or Excluded Liabilities.

1.2 Excluded Assets. Notwithstanding any provision herein to the contrary, the Purchased Assets shall not include any of the following assets, properties, rights, or interests of Seller (collectively, the “Excluded Assets”):

- (a) 2022 BMW X5;
- (b) 2022 Volkswagen (leased vehicle);
- (c) any retainers or deposits paid to AKF’s professionals and any rights to refunds of excess retainer or deposit payments;
- (d) cash of \$5,000 or less;
- (e) the Seller’ rights under this Agreement and the other Transaction Documents, and all cash and non-cash consideration payable or deliverable to the Seller pursuant to the terms and provisions hereof;
- (f) all rights, claims and causes of action of Seller and all rights of indemnity, warranty rights, rights of contribution, rights to refunds or prepayments, rights of reimbursement and other rights of recovery, including rights to insurance proceeds, of Seller (regardless of whether such rights are currently exercisable), (i) to the extent related to any Excluded Asset or Excluded Liability or (ii) not related to the Purchased Assets;
- (g) all Seller’s retirement plans, life insurance, disability insurance and employee benefit programs, including health and dental insurance, and Seller’ right, title and interest in any assets of or relating thereto;
- (h) all Tax refunds, overpayments, credits with respect to taxable periods (or portions thereof) ending on or prior to the Closing Date;
- (i) all minute books and other corporate records of Seller; and
- (j) any other assets to the extent not related to the Business.

1.3 Assumed Liabilities. Subject to the terms and conditions of this Agreement, effective as of the Closing, the Buyer shall assume and agree to pay, perform and discharge when due those liabilities of the Seller related to the Business as are expressly set forth on Schedule 2 annexed hereto and made a part hereof (the “Assumed Liabilities”).

1.4 Excluded Liabilities. The Buyer shall not assume or be obligated to pay, perform or otherwise discharge or in any other manner be liable or responsible for any liabilities of the Seller other than the Assumed Liabilities, including, without limitation, those liabilities set forth on Schedule 3 annexed hereto and made a part hereof (the “Excluded Liabilities”).

1.5 Purchase Price. The consideration for the sale and transfer of the Purchased Assets from the Seller to the Buyer shall be: (i) one hundred thirty five thousand dollars (\$135,000.00) (the “Cash Purchase Price”) and (ii) the assumption of the Assumed Liabilities (collectively, the “Purchase Price”).

1.6 Payment. On the Closing Date, the Buyer shall pay to the Seller or its designee(s), by wire transfer of immediately available funds to an account designated by the Seller prior to the Closing, an amount or amounts in cash equal, forty seven thousand four dollars (\$47,004.00) (the “Initial Payment”).

(a) The balance of the Cash Purchase Price in the amount of eighty seven thousand nine hundred ninety six dollars (\$87,996.00) shall be payable in twelve equal monthly installments in the amount of seven thousand three hundred thirty three dollars (\$7,333.00) with the first installment due thirty days from the Closing Date and each installment due thirty days thereafter.

(b) Payment of the balance of the Cash Purchase Price shall be evidenced by a promissory note executed at closing and attached hereto as **Exhibit A** (the “Note”) and secured by personal guarantees of the principals of YBK Coit LLC, Kalman Kamionka, Benjamin Tyberg, Israel Kamionka, executed at closing in form attached hereto as **Exhibit B** (the “Personal Guaranties”).

1.7 Allocation of Purchase Price. The Seller shall, not later than sixty (60) days after the Closing Date, prepare and deliver to the Buyer an allocation of the Purchase Price (and the Assumed Liabilities and other relevant items, to the extent properly taken into account for Tax purposes) among the Purchased Assets (the “Allocation”) in accordance with Section 1060 of the Code, the Treasury Regulations thereunder and other applicable Law for the Buyer’s review and approval (such approval not to be unreasonably withheld, conditioned or delayed). The Allocation shall be conclusive and binding on the Parties unless the Buyer notifies the Seller in writing that the Buyer objects to one or more items reflected in the Allocation, and specify the reasonable basis for such objection, within ten (10) days after delivery to the Buyer of the Allocation. In the case of such an objection, the Seller and the Buyer shall negotiate in good faith to resolve any disputed items. Any resolution by the Seller and the Buyer shall be conclusive and binding on the parties once set forth in writing (any such conclusive and binding Allocation, the “Final Allocation”). If the Seller and the Buyer are unable to resolve all disputed items within fifteen (15) days after the delivery of the Buyer’s written objection to the Seller, the Buyer and the Seller shall jointly retain a mutually agreed independent accounting firm (the “Accounting Firm”) (which may in turn select an appraiser, if needed) to resolve any disputed item(s). The costs, fees and expenses of the Accounting Firm shall be borne one-half by the Buyer and one-half by the Seller. The Accounting Firm shall resolve any such dispute within thirty (30) days after the retention, and the Final Allocation shall be adjusted to reflect any such resolution of any disputed item(s). The Parties agree to file all Tax Returns (including the filing of IRS Form 8594 with their U.S. federal income Tax Return for the taxable year that includes the date of the Closing) consistent with, and shall not take any position in connection with Tax

matters that is inconsistent with, the Final Allocation

unless otherwise required by a final determination within the meaning of Section 1313 of the Code or any corresponding provision of state, local or non-U.S. Law, or as the Buyer or the Seller (as applicable) determines is necessary to settle a dispute with a Tax authority after making a good faith effort to defend the Final Allocation. In the event that a Governmental Authority disputes the Final Allocation, the Party receiving notice of such dispute shall promptly notify the other Party hereto, and the Seller and the Buyer shall, and shall cause their respective Affiliates to, use their reasonable best efforts to defend such Final Allocation in any applicable proceeding.

ARTICLE II CLOSING

2.1 Time and Place of the Closing. Upon the terms and subject to the satisfaction or waiver of the conditions contained in Article 6 of this Agreement, the closing of the sale of the Purchased Assets and the assumption of the Assumed Liabilities contemplated by this Agreement (the “Closing”) shall take place at a time and place to be determined by the parties. The date on which the Closing actually occurs is herein referred to as the “Closing Date.”

2.2 Deliveries by the Seller at Closing. At or prior to the Closing, the Seller shall deliver or cause to be delivered the following to the Buyer:

- (a) possession of the Purchased Assets;
- (b) bill of sale, duly executed by the Seller, in the form annexed hereto as **Exhibit C**;
- (c) resolutions of the Seller’s shareholder(s) authorizing the execution and delivery of the Agreement and authorizing the Transactions;
- (d) executed assignment and assumption of the Lease in the form annexed hereto as **Exhibit D**; and
- (e) such other documents of assignment and transfer as may be reasonably required to vest in Buyer all right, title, and interest of Seller in and to the Purchased Assets.

2.3 Deliveries by the Buyer at Closing. At or prior to the Closing, the Buyer shall deliver or cause to be delivered the following to the Buyer:

- (a) the Initial Payment, payable in accordance with 1.6;
- (b) bill of sale, duly executed by the Buyer, in the form annexed hereto as **Exhibit C**;
- (c) executed Note in the form annexed hereto as **Exhibit A**;
- (d) executed Personal Guaranties in the form annexed hereto as **Exhibit B**;

- (e) executed assignment and assumption of the Lease in the form annexed hereto as **Exhibit D**; and
- (f) resolutions of the Buyer's member(s) authorizing the execution and delivery of the Agreement and authorizing the Transactions.

ARTICLE 3

REPRESENTATIONS AND WARRANTIES OF THE SELLER

The Seller hereby represents and warrants to the Buyer (in the case of any assets or liabilities of the Seller, solely with respect to the Purchased Assets and Assumed Liabilities) as follows:

3.1 Organization, Standing and Corporate Power. The Seller is a duly organized New Jersey corporation validly existing and in good standing in the State of New Jersey and has the requisite corporate power and authority to own or lease all of its properties and assets and to carry on its business as it is now being conducted. The Seller has all necessary power and authority to execute and deliver this Agreement and the other Transaction Documents to which it is a party, to perform and comply with each of its obligations hereunder and thereunder and, in accordance with the terms hereof and thereof, will have all necessary corporate or similar authority to consummate the Transactions.

3.3 Authority Relative to this Agreement. The execution and delivery by the Seller of this Agreement and the other Transaction Documents to which the Seller is a party, the performance and compliance by the Seller with each of their obligations herein and therein, and the consummation by it of the Transactions have been duly and validly authorized and approved by all necessary corporate or other action on the part of the Seller.

3.2 Due Execution. The Seller has duly and validly executed and delivered this Agreement and will (as of the Closing) duly and validly execute and deliver the other Transaction Documents to which it is a party and, assuming the due authorization, execution and delivery by the Buyer of this Agreement and the other Transaction Documents to which it is party, and by the other parties to the Transaction Documents, this Agreement constitutes and the other Transaction Documents will constitute (as of the Closing) legal, valid and binding obligations of Seller, enforceable against Seller in accordance with its terms.

3.2 Legal Proceedings and Orders. Except for the Eviction Action and the employee litigation described on Schedule 3, there is no pending or, to the knowledge of the Seller, threatened action, suit, arbitration, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding or any informal proceeding) or investigation pending or being heard by or before, or otherwise involving, any governmental authority, arbitrator, arbitration panel or any other Person (each a "Proceeding") against or affecting the Seller, and as of the date hereof, no Person has commenced or, to the knowledge of the Seller, threatened in writing to commence any Proceeding (a) that relates to and would reasonably be expected to materially and adversely affect any of the Purchased Assets, or (b) that would reasonably be expected to have the effect of preventing, materially delaying, making illegal or otherwise materially interfering with any of the transactions contemplated by this Agreement.

3.4 Taxes. All material Tax Returns relating to the Business or the Purchased Assets that are required by applicable Law to be filed by or with respect to Seller have been timely filed (taking into account any extension of time within which to file), and all such Tax Returns are true, complete, and accurate in all material respects. The Seller has timely paid all material Taxes relating to the Business or the Purchased Assets due and owing by it, including any material Taxes required to be withheld from amounts owing to, or collected from, any employee, creditor, or other third party. There are no audits, examinations, investigations or other proceedings ongoing or pending against or with respect to the Seller with respect to any material Taxes relating to the Business or the Purchased Assets and no written notification has been received by the Seller that such an audit, examination, investigation or other proceeding has been proposed. There are no encumbrances for material Taxes relating to the Business or the Purchased Assets upon any property or assets of the Seller, except for Permitted Encumbrances.

3.3 Title to Assets; Real Property.

- (a) The Seller has good and valid title to, or has good and valid leasehold interests in, all tangible personal property that is included in the Business, including the Purchased Assets (other than the Excluded Assets), free and clear of all Encumbrances other than Permitted Encumbrances.
- (b) The machinery listed on Schedule 1 will be in good working order.
- (c) The Seller does not own any real property.

3.4 Seller Brokers. The Seller has not used any investment banker, broker, finder or similar agent in connection with the Transactions, and no Person is entitled to any investment banker, brokerage, financial advisory, finder's or other similar fee or commission payable by the Seller in connection with the Transactions.

ARTICLE 4
REPRESENTATIONS AND WARRANTIES OF THE BUYER

The Buyer hereby represents and warrants to the Seller as follows:

4.1 Organization and Good Standing. The Buyer is a limited liability company duly organized, validly existing and, to the extent applicable, in good standing (or its equivalent) under the jurisdiction of its incorporation or organization and has the requisite corporate power and authority to own or lease all of its properties and assets and to carry on its business as it is being conducted on the date hereof. The Buyer is duly licensed or qualified to do business in each jurisdiction in which the nature of the business conducted by it or the character or location of the properties and assets owned or leased by it makes such licensing or qualification necessary, except for those licenses or qualifications the absence of which would not prevent or materially delay the consummation of the Transactions.

4.2 Authority Relative to this Agreement. The Buyer has all necessary power and authority to execute and deliver this Agreement and the other Transaction Documents to which it is party, to perform and comply with each of its obligations hereunder and thereunder and to consummate the Transactions. The execution and delivery by the Buyer of this Agreement and the other

Transaction Documents to which it is party, the performance and compliance by the Buyer with each of its obligations herein and therein and the consummation by the Buyer of the Transactions have been duly and validly authorized and approved by all necessary corporate or other action on the part of the Buyer and no other corporate or other proceedings on the part of the Buyer and no stockholder votes are necessary to authorize this Agreement, the other Transaction Documents to which it is party or the performance or consummation by the Buyer of the Transactions. The Buyer has duly and validly executed and delivered this Agreement, and the other Transaction Documents to which it is party will be duly executed and delivered by the Buyer and, assuming the due and valid authorization, approval, execution and delivery by the Seller of this Agreement and the other Transaction Documents, this Agreement and the other Transaction Documents to which the Buyer is party constitutes or will constitute the Buyer's legal, valid and binding obligation, enforceable against the Buyer in accordance with its terms

4.3 No Violation. The authorization, execution and delivery of this Agreement or the other Transaction Documents by the Buyer do not and will not, and the performance by the Buyer of this Agreement and the other Transaction Documents to which it is party will not, with or without notice, lapse of time or both, (i) conflict with or violate any provision of the organizational documents of the Buyer, or (ii) conflict with or violate any Law or Order applicable to the Buyer, or by which any property or asset of the Buyer is bound or affected.

4.4 Buyer Brokers. The Buyer has not used any investment banker, broker, finder or similar agent in connection with the Transactions, and no Person is entitled to any investment banker, brokerage, financial advisory, finder's or other similar fee or commission payable by the Buyer or any of its Affiliates in connection with the Transactions. Any such fees shall be paid in full by the Buyer.

4.5 Solvency. Immediately after giving effect to the Transactions, the Buyer shall be solvent and shall: (a) be able to pay its debts as they become due; (b) own property that has a fair saleable value greater than the amounts required to pay its debt (including a reasonable estimate of the amount of all contingent liabilities); and (c) have adequate capital to carry on its business. No transfer of property is being made and no obligation is being incurred in connection with the Transactions with the intent to hinder, delay or defraud either present or future creditors of the Buyer or the Seller. In connection with the Transactions, the Buyer has not incurred, nor plans to incur, debts beyond its ability to pay as they become absolute and matured.

4.6 Financial Capability. The Buyer (a) has as of the date hereof, and on the Closing Date will have, sufficient funds available to pay the Purchase Price, including the Assumed Liabilities, and any expenses incurred by the Buyer in connection with the Transactions, (b) has as of the date hereof, and on the Closing Date will have, the resources and capabilities (financial or otherwise) to perform its obligations hereunder and the other Transaction Documents, and (c) has not incurred any obligation, commitment, restriction or Liability of any kind, which would impair or adversely affect such resources and capabilities.

ARTICLE 5

CONVENANTS OF THE PARTIES

5.1 Expenses. Except to the extent otherwise specifically and expressly provided in this Agreement or in the Sale Order, whether or not the Transactions are consummated, all costs and expenses incurred in connection with this Agreement and the Transactions shall be borne by the Party incurring such costs and expenses.

5.2 Tax Matters.

(a) Any sales, use, goods and services, harmonized sales, property transfer or gains, documentary, stamp, registration, recording, value added, or similar Tax payable in connection with the sale or transfer of the Purchased Assets and the assumption of the Assumed Liabilities (“Transfer Taxes”) shall be borne and paid by the Seller.

(b) The Seller and the Buyer agree to furnish or cause to be furnished to each other, upon request, as promptly as practicable, such information and assistance as is reasonably necessary for the filing of tax returns, the making of any election relating to taxes, the preparation for any audit or other proceeding by Governmental Authority and the prosecution or defense of any claim, suit or other proceeding relating to any tax.

5.3 Transfer of Purchased Assets. The Buyer will make all necessary arrangements for the Buyer to take possession of the Purchased Assets, and, at the Buyer’s expense, to transfer the same to a location owned or operated by the Buyer, to the extent necessary, as promptly as practicable following the Closing, and the Seller shall fully cooperate with all such efforts, and shall promptly transfer on the Closing Date all Purchased Assets that may be delivered by electronic means.

5.4 Purchased Assets “AS IS;” Certain Acknowledgements.

(a) The Buyer agrees, warrants and represents that, except as otherwise expressly provided in this Agreement (i) the Buyer is purchasing the Purchased Assets on an “AS IS” and “WITH ALL FAULTS” basis based solely on the Buyer’s own investigation of the Seller, the Purchased Assets, the Assumed Liabilities, the Excluded Assets, the Excluded Liabilities and the Business, and (ii) neither the Seller nor any of the Seller’s Representatives has made, and the Buyer has not relied on, any warranties, representations or guarantees, express, implied or statutory, written or oral, respecting the Seller, the Purchased Assets, the Assumed Liabilities, the Excluded Assets, the Excluded Liabilities or the Business, the financial performance of the Seller, the Purchased Assets, the Assumed Liabilities, the Excluded Assets, the Excluded Liabilities or the Business, or the physical condition of the Purchased Assets except that Seller warrants the machinery on Schedule 1 is in working order. The Buyer further acknowledges that the consideration for the Purchased Assets specified in this Agreement has been agreed upon by the Seller and the Buyer after good-faith arms-length negotiation in light of the Buyer’s agreement to purchase the Purchased Assets “AS IS” and “WITH ALL FAULTS.” The Buyer agrees, warrants and represents that, except for the express representations and warranties of the Seller set forth in Article 3 of this Agreement, the Buyer has relied, and shall rely, solely upon its own investigation of all such matters,

and that the Buyer assumes all risks with

respect thereto. EXCEPT AS SET FORTH IN ARTICLE 3 OF THIS AGREEMENT, THE SELLER MAKE NO EXPRESS WARRANTY, NO WARRANTY OF MERCHANTABILITY, NO WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE, AND NO IMPLIED OR STATUTORY WARRANTY WHATSOEVER WITH RESPECT TO ANY REAL OR PERSONAL PROPERTY OR ANY FIXTURES OR THE BUSINESS OR THE SELLER, THE PURCHASED ASSETS, THE ASSUMED LIABILITIES, THE EXCLUDED ASSETS, THE EXCLUDED LIABILITIES OR THE BUSINESS. Notwithstanding the foregoing, nothing herein shall limit the Seller's liability in the event of fraud or a breach of any covenant.

(b) The Buyer acknowledges and agrees that it has had an opportunity to discuss the Business with the management of the Seller and has been afforded the opportunity to ask questions of and receive answers from management of the Seller. In connection with the investigation by the Buyer, the Buyer has received or may receive from the Seller certain projections, forward-looking statements and other forecasts and certain business plan information. The Buyer acknowledges and agrees neither the Seller nor any other Person will have or be subject to any Liability or indemnification obligation to the Buyer or any other Person resulting from the distribution to, or use by, the Buyer or any of its Affiliates or any of the Buyer's Representatives of any information provided to the Buyer or any of its Affiliates or any of the Buyer's Representatives by the Seller or any of the Seller's Representatives.

(c) Except for the representations and warranties contained in Article 3, the Buyer acknowledges that none of the Seller nor any other Person on behalf of the Seller makes any express or implied representation or warranty with respect to the Seller, the Purchased Assets, the Assumed Liabilities, the Excluded Assets, the Excluded Liabilities or the Business, or with respect to any information provided to the Buyer or any of its Affiliates or any Representative of the Buyer, and the Seller hereby disclaims any other representations or warranties made by the Seller or any other Person with respect to the execution and delivery of this Agreement, the other Transaction Documents, the Seller, the Purchased Assets, the Assumed Liabilities, the Excluded Assets, the Excluded Liabilities, the Business or the Transactions. The Buyer has not relied on any representation, warranty or other statement by any Person on behalf of the Seller, other than the representations and warranties of the Seller expressly contained in Article 3. The Buyer acknowledges and agrees that the representations and warranties set forth in Article 3 are made solely by the Seller, and no Affiliate of the Seller, Representative of the Seller or other Person shall have any responsibility or Liability related thereto.

5.5 Limitation of Damages. NOTWITHSTANDING ANY OTHER PROVISION IN THIS AGREEMENT, NO PARTY SHALL BE LIABLE FOR SPECIAL, PUNITIVE, EXEMPLARY, INCIDENTAL, CONSEQUENTIAL OR INDIRECT DAMAGES (INCLUDING LOSS OF REVENUE, INCOME OR PROFITS BUT ONLY TO THE EXTENT THE SAME ARE NOT DIRECT DAMAGES), DIMINUTION OF VALUE OR LOSS OF BUSINESS REPUTATION OR OPPORTUNITY OF ANY OTHER PARTY OR ANY OF SUCH PARTY'S AFFILIATES, WHETHER BASED ON CONTRACT, TORT, STRICT LIABILITY, OTHER LAW OR OTHERWISE; PROVIDED, HOWEVER, THAT SUCH LIMITATIONS SHALL NOT LIMIT

ANY PARTY'S RIGHT TO RECOVER CONTRACT DAMAGES IN CONNECTION WITH THE OTHER PARTY'S FAILURE TO CLOSE IN VIOLATION OF THIS AGREEMENT.

ARTICLE 6 CONDITIONS TO CLOSING

6.1 Conditions to Closing. The obligations of the Parties to consummate the Closing shall be subject to the satisfaction or, to the extent permitted by applicable Law, waiver at or prior to the Closing of the following additional conditions:

- (a) the Parties shall have performed and complied in all material respects with the covenants and agreements contained in this Agreement which are required to be performed and complied with by the Buyer on or prior to the Closing Date;
- (b) the representations and warranties of the Seller set forth in Article 3 and of the Buyer set forth in Article 4, shall be true and correct as of the date of this Agreement and as of the Closing Date as though made at and as of the Closing Date;
- (c) the Buyer shall have received the other items to be delivered to it pursuant to Article 2.2.
- (d) the Seller shall have received the other items to be delivered to it pursuant to Article 2.3.

ARTICLE 7 MISCELLANEOUS PROVISIONS

7.1 Amendment and Modification. This Agreement may be amended, modified or supplemented only by a written instrument signed by the Seller, on behalf of each of the Seller, and the Buyer.

7.2 Survival. The covenants and agreements of the Parties in this Agreement and the representations and warranties of the Parties in this Agreement, in any instrument delivered pursuant to this Agreement, or in the Schedules or Exhibits attached hereto, and shall not merge with the Bill of Sale and become part thereof, but shall survive the Closing and shall continue in full force and effect for a period of one (1) year from the Closing Date.

7.3 Notices. All notices or other communications required or permitted under, or otherwise made in connection with, this Agreement shall be in writing and shall be deemed to have been duly given or made (a) when delivered in person, (b) when sent if delivered or transmitted by email (*provided*, no "bounce back" or notice of non-delivery is generated), (c) upon receipt after dispatch by registered or certified mail, return receipt requested on postage prepaid, or (d) on the next

Business Day if transmitted by national overnight courier (with confirmation of delivery), in each case, addressed as follows:

If to the Seller, to:

Courtney A. Schael, Esq.
Ashford – Schael LLC
100 Quimby Street, Suite 1
Westfield, NJ. 07090

Email: cschael@ashfordnjlaw.com

-AND-

Benjamin Kolax
8 Upper Brook Lane
Hillsdale, NJ 07642

Email: Ben@arnoldcontract.us

If to the Buyer, to:

Alan Ehrlich, Esq.
Ehrlich, Petriello, Gudin, Plaza & Reed
A Professional Corporation
60 Park Place 18th Fl
Newark, New Jersey 07102

Email: alan@epgprlaw.com

-AND-

YBK Coit, LLC
120 Coit Street
Irvington, NJ 07111

Email: kamionka5520@gmail.com

or to such other address as any party shall specify by written notice so given, and such notice shall be deemed to have been delivered as of the date so telecommunicated or personally delivered. Any Party may notify any other Party of any changes to the address or any of the other details specified in this 7.3; *provided* that such notification shall only be effective on the date specified in such notice or five (5) Business Days after the notice is given, whichever is later. Rejection or other refusal to accept or the inability to deliver because of changed address of which no notice was given shall be deemed to be receipt of the notice as of the date of such rejection, refusal or inability to deliver.

7.4 Severability. If any term or other provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of Law or public policy, all other terms, conditions and provisions of this Agreement shall nevertheless remain in full force and effect so long as the economic or legal substance of the transactions contemplated hereby is not affected in any manner materially adverse to any Party. Upon a determination that any term or other provision of this Agreement is invalid, illegal or incapable of being enforced, the Parties shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the fullest extent possible.

7.5 Governing Law. This Agreement, and all claims and causes of action arising out of, based upon, or related to this Agreement or the negotiation, execution or performance hereof, shall be governed by, and construed, interpreted and enforced in accordance with, the Laws of the State of New Jersey, without regard to choice or conflict of law principles that would result in the application of any Laws other than the Laws of the State of New Jersey.

7.6 Submission to Jurisdiction. Any action, claim, suit or Proceeding arising out of, based upon or relating to this Agreement or the transactions contemplated hereby shall be brought solely in the courts of New Jersey. Each Party hereby irrevocably submits to the exclusive jurisdiction of the courts of New Jersey in respect of any action, claim, suit or Proceeding arising out of, based upon or relating to this Agreement or any of the rights and obligations arising hereunder, and agrees that it will not bring any action arising out of, based upon or related thereto in any other court. Each Party hereby irrevocably waives, and agrees not to assert as a defense, counterclaim or otherwise, in any such action, claim, suit or Proceeding, (a) any claim that it is not personally subject to the jurisdiction of the above named courts for any reason other than the failure to serve process, (b) any claim that it or its property is exempt or immune from jurisdiction of any such court or from any legal process commenced in such courts (whether through service of notice, attachment prior to judgment, attachment in aid of execution of judgment, execution of judgment or otherwise) and (c) to the fullest extent permitted by applicable Law, any claim that (i) the suit, action or Proceeding in such court is brought in an inconvenient forum, (ii) the venue of such suit, action or Proceeding is improper or (iii) this Agreement or any other agreement or instrument contemplated hereby or entered into in connection herewith, or the subject matter hereof or thereof, may not be enforced in or by such courts. Each Party agrees that notice or the service of process in any action, claim, suit or Proceeding arising out of, based upon or relating to this Agreement or any of the rights and obligations arising hereunder or thereunder, shall be properly served or delivered if delivered in the manner contemplated by Article 7.

7.7 Counterparts. This Agreement, the agreements referred to herein, and each other agreement or instrument entered into in connection herewith or therewith or contemplated hereby or thereby, and any amendments hereto or thereto, to the extent signed and delivered by means of a photographic, photostatic, facsimile, portable document format (.pdf), DocuSign, electronic signature or similar reproduction of such signed writing using a facsimile machine or electronic mail shall be treated in all manner and respects as an original agreement or instrument and shall be considered to have the same binding legal effect as if it were the original signed version thereof delivered in person. No party hereto or to any such agreement or instrument shall raise the use of a facsimile machine or electronic mail to deliver a signature or the fact that any signature or agreement or instrument was transmitted or communicated through the use of a facsimile machine

or electronic mail or that any signature is in facsimile or electronic format (including .pdf or DocuSign) as a defense to the formation or enforceability of a contract and each such party forever waives any such defense.

7.8 Incorporation of Schedules and Exhibits. All Schedules and all Exhibits attached hereto and referred to herein are hereby incorporated herein by reference and made a part of this Agreement for all purposes as if fully set forth herein.

7.9 Entire Agreement. This Agreement (including all Schedules and all Exhibits), the Confidentiality Agreement and the other Transaction Documents constitute the entire agreement among the Parties with respect to the subject matter hereof and supersede all prior agreements and understandings among the Parties with respect thereto.

7.10 Specific Performance. Each party agrees that irreparable damage may occur in the event that any provision of this Agreement is not performed in accordance with its specific terms or was otherwise breached and that monetary damages may not be an adequate remedy for any breach or threatened breach of any of the provisions of this Agreement. It is accordingly agreed that, (i) each party shall be entitled to an injunction or injunctions to prevent breaches of this Agreement by the other and to enforce specifically the terms and provisions of this Agreement, and any such injunction shall be in addition to any other remedy to which such party is entitled, at law or in equity, (ii) each party waives any requirement for the securing or posting of any bond in connection with the obtaining of any specific performance or injunctive relief and (iii) each party will waive, in any action for specific performance, the defense of adequacy of a remedy at Law. No party's pursuit of specific performance at any time will be deemed an election of remedies or waiver of the right to pursue any other right or remedy to which such party may be entitled, including the right to pursue remedies for liabilities or damages incurred or suffered by such party in the case of a breach of this Agreement.

7.11 Bulk Sales or Transfer Laws. The Buyer hereby waives compliance by the Seller with the provisions of the bulk sales or transfer Laws of all applicable jurisdictions.

7.12 Mutual Drafting; Headings; Information Made Available. The Parties participated jointly in the negotiation and drafting of this Agreement and the language used in this Agreement shall be deemed to be the language chosen by the Parties to express their mutual intent. If an ambiguity or question of intent or interpretation arises, then this Agreement will accordingly be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favoring or disfavoring any Party by virtue of the authorship of any of the provisions of this Agreement. The descriptive headings and table of contents contained in this Agreement are included for convenience of reference only and shall not affect in any way the meaning or interpretation of this Agreement. To the extent this Agreement refers to information or documents to be made available (or delivered or provided) to the Buyer or its Representatives, the Seller shall be deemed to have satisfied such obligation if the Seller or any of its Representatives has made such information or document available (or delivered or provided such information or document) to the Buyer or any of its Representatives, whether in an electronic data room, via electronic mail, in hard copy format or otherwise.

IN WITNESS WHEREOF, the Parties hereto have caused this Asset Purchase Agreement to be executed as of the date first written above.

SELLER

ARNOLD KOLAX FURNITURE, INC.

By: _____

Name: Benjamin Kolax

Title: President

BUYER

YBK COIT, LLC

By: _____

Name: Benjamin Tyberg

Title: Member

SCHEDULES AND EXHIBITS

ARNOLD KOLAX FURNITURE, INC.

SCHEDULE 1— MACHINERY

SCHEDULE 2— ASSUMED LIABILITIES

SCHEDULE 3— EXCLUDED

LIABILITIES

Exhibit A—Promissory Note

Exhibit B—Personal Guaranties

Exhibit C—Bill of Sale

Exhibit D—Assignment of Lease

Exhibit E—Assignment of Payments

Schedule 1—MACHINERY

ARNOLD KOLAX FURNITURE, INC.

Biesse Selco Sektor 450 Panel Saw S/N 100000386 AKF
Butfering STO 113L Wide Belt Sander AKF
Homag Edgebander 0-261-71-4844 AKF

Schedule 2—ASSUMED LIABILITIES

ARNOLD KOLAX FURNITURE, INC.

All liabilities of any nature arising, accruing or incurred after the Closing Date.

All customer deposits and all obligations to fulfill customer orders, whether such deposits were received before or after the Closing Date.

All liabilities whether arising or accruing before or after the Closing Date under the Lease.

Schedule 3—EXCLUDED LIABILITIES

ARNOLD KOLAX FURNITURE, INC.

All accounts payable, trade payables, and other obligations to vendors or creditors of the Seller arising or accruing prior to the Closing Date.

Any and all amounts due for loans from Benjamin Kolax to Arnold Kolax Furniture, Inc.

Any and all amounts due for loans from Wilhelm Kolax to Arnold Kolax Furniture, Inc.

BMW Financial Services—financing contract

American Express credit card—balance to be paid in full from Initial Cash Payment and account closed

Lease for 2022 Volkswagen

Employer health insurance, dental insurance, 401k plan, disability insurance, life insurance and all other employee benefit plans

Judgment in the amount of \$5,295.12 entered on 12/2/25 in favor of Delta Dental of New Jersey (joint and several with other unrelated entities)

Contingent liability for claims asserted by former employees, Carlos and Lizardo Guerra, against AKF under the New Jersey Law Against Discrimination (“LAD”) arising out of the termination of their employment